



Notification Waiver Determination

Savvy Games Group – Moonton

Acquisition	East Gate Games Investment Company (East Gate), a special purpose vehicle wholly owned by Saudi Electronic Games Holding Company (doing business as Savvy Games Group (Savvy)), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares of Moonton Holdings Limited (Moonton), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	29 April 2026

Parties to the Acquisition	The acquirer, East Gate, is a special purpose vehicle wholly owned by Savvy. Savvy principally invests in and manages companies that develop, market, and publish games for mobile devices. Savvy is wholly owned by the Public Investment Fund (PIF), the sovereign wealth fund of the Kingdom of Saudi Arabia. Moonton (a wholly owned subsidiary of Bytedance Ltd. (Bytedance)) is active in mobile game development, publishing and related business. Bytedance is a holding company registered in the Cayman Islands. Savvy and Moonton are involved in the development and publishing of games for mobile devices, and Savvy is also active in organising esports events.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - the parties' combined share in the supply of mobile video games in Australia is low and the increase in share of supply arising from the Acquisition would be small - there are alternative developers and publishers of mobile video games in Australia

	c. while there is a potential vertical relationship between the parties in relation to esports, there appears to be a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**